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General Comment

Investing in AI Innovation and Education for Healthcare Transformation:

Federal funding for AI in healthcare is essential to drive innovation, improve patient outcomes, and enhance operational efficiencies within health systems. As AI technologies advance, targeted investments are needed to support research, development, and deployment of AI-driven solutions in areas such as clinical decision support, predictive analytics, imaging, administrative automation, and population health management. Additionally, AI education and workforce development must be prioritized to equip healthcare professionals with the necessary skills to adopt and leverage AI technologies effectively. Health systems require funding to implement AI solutions that enhance care delivery while ensuring equity, privacy, and security. We urge policymakers to allocate dedicated funding for AI initiatives, including grants for health systems to pilot AI projects, investments in AI-driven data infrastructure and interoperability, and training programs for clinicians, IT staff, and administrators. By supporting both AI innovation and education, federal funding can help health systems maximize the benefits of AI while ensuring responsible and ethical implementation.

Alignment with HIPAA and 21st Century Cures Act:

As AI becomes increasingly integrated into healthcare, it is essential to align existing regulations, such as HIPAA and the 21st Century Cures Act, with emerging AI technologies. HIPAA was designed to protect patient privacy and ensure secure health data exchange, while the 21st Century Cures Act promotes interoperability and patient access to electronic health information. However, AI-driven healthcare applications present new challenges, including automated decision-making, secondary data use, and the need for transparent and explainable AI models. Policymakers must ensure that AI regulations complement HIPAA and the Cures Act, balancing innovation with patient privacy, security, and access to data. Clear guidance is needed on how AI can responsibly leverage protected health information (PHI) while maintaining compliance with existing privacy laws and promoting ethical data use. By aligning AI policies with these regulatory frameworks, health systems can deploy AI solutions more effectively, fostering innovation while safeguarding patient rights and data integrity.

Behavioral Health / Part 2 Regulations:

From a behavioral health perspective, it is critical that AI policies account for the unique privacy and regulatory considerations outlined in 42 CFR Part 2, which governs the confidentiality of substance use disorder (SUD) treatment records. Unlike traditional healthcare data protected under HIPAA, Part 2 regulations impose stricter controls on the use and disclosure of SUD-related information, requiring explicit patient consent. As AI-driven tools are increasingly used in behavioral health for clinical decision support, predictive analytics, and patient engagement, it is essential that federal AI policies ensure compliance with Part 2 protections while allowing for responsible innovation. Clear guidelines are needed to prevent unintended disclosure of sensitive behavioral health data, ensure that AI models are trained with appropriate consent mechanisms, and establish safeguards that protect patients from potential discrimination or stigma. We urge policymakers to provide specific guidance on how AI can be ethically and effectively deployed in behavioral health settings without compromising patient privacy or regulatory compliance.

Data Standardization:

Data standardization is essential for ensuring the accuracy, interoperability, and reliability of AI applications in healthcare. As AI models rely on large volumes of diverse data sources, inconsistencies in data formats, terminologies, and structures can lead to biased or

unreliable outcomes. Federal AI policies should promote the adoption of standardized data frameworks, such as HL7 FHIR, SNOMED CT, LOINC, and ICD-10, to facilitate seamless data exchange across electronic health records (EHRs), clinical decision support systems, and research initiatives. Standardization is critical for improving care coordination, enhancing AI model performance, and enabling more effective decision-making across the healthcare continuum. We urge policymakers to establish clear guidelines for AI developers, ensuring adherence to industry-recognized data standards while maintaining compliance with patient privacy and security regulations. A standardized approach will not only improve AI-driven insights but also foster innovation and equitable access to healthcare advancements.